

		Defendants shall file and serve their complete amended exhibits no later than 8/12/2026. Plaintiff may file an amended opposition per Code. Clerk to give notice.
5	Zavala vs. Price 30-2026- 01541665-CU- PA-CJC	Motion to Strike Amended Answer Plaintiff Regina M. Zavala's motion to strike the amended unverified answer of defendant Rochelle Niegas Price and to enforce the court order determining defendant's sole liability in Related Case No. 30-2025-01451705-CU-PA-CJC – Riordan Zavala v. Rochelle Niegas Price ("Related Case") is DENIED. Defendant filed an amended verified answer to the Complaint on 4/16/26. (ROA 24.) Plaintiff's request is DENIED as moot. Plaintiff also asks the court to find Defendant is solely liable in this case based on the court's prior ruling in the Related Case. A motion to strike answer is not the proper procedural vehicle for seeking such relief. Clerk to give notice.
6	Belles vs. Toyota Motor Sales, U.S.A., Inc. 30-2024- 01450518-CU- BC-CJC	Motion for Attorney Fees Plaintiff Martin Schwartz's motion for attorney fees is GRANTED as modified. On 10/3/2025, Plaintiff accepted Defendant's 998 Offer. The parties do not dispute Plaintiff is the prevailing party entitled to attorney fees. Plaintiff seeks an award of attorney fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of \$20,150.00, costs of \$1,061.94, and a lodestar multiplier of 0.3, for a total of \$27,256.94. Defendant Toyota Motor Sales, U.S.A., Inc. challenges both the hourly rate charged, and the total number of billable hours claimed by Plaintiff's attorneys. The hourly rates of Christopher Urner is reduced to \$450, the hourly rate for Jorge L. Acosta is reduced to \$425, and the hourly rate of paralegal Mary M. Zazueta is reduced to \$175. Defendant challenges 0.9 hours billed by Acosta to analyze and annotate Defendant's objection-only

		responses. The time expended in analyzing and annotating objection-only responses is unreasonable and the requested hours for Acosta are reduced by 0.9 hours Further, the request for 9.4 hours for the instant attorneys' fees motion is excessive and reduced by 3.4 hours (0.9 hours for Acosta and 2.5 hours for Urner). The court awards attorney fees of \$15,817.50. Plaintiffs request for a 0.3 multiplier to the lodestar is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Plaintiff filed a memorandum of costs, claiming \$1,061.94 in costs, on 5/6/2026. (ROA 35.) Defendant did not file a motion to strike or tax costs. Therefore, costs are awarded in the amount of \$1,061.94. Plaintiff to give notice.
7	Moran vs. General Motors, LLC 30-2024-01396983-CU-BC-CJC	Motion for Attorney Fees Plaintiff Yanet Moran's motion for attorney fees is DENIED. The court has observed a trend in lemon law cases, nearly all of which settle prior to trial, which is wholly absent from all other civil litigation the court oversees. The lemon law parties wait until the eve of trial, plaintiff files a notice of settlement <i>of entire case</i> without disclosing to the court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with dismissal, later filing a motion for attorney fees on grounds the parties agreed the court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, the chosen course of litigation conduct has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does